

Federal Maritime Commission

MAVL Capital, et al.

v.

MARINE TRANSPORT LOGISTICS, INC.,
DIMITRY ALPER

Docket No. 16-16

**MTL'S STATEMENT OF PROPOSED
FACTS**

1. The following email address belonged to Mr. Ostrovskiy in 2013:
MAXIM@autolehmann.ru.
2. Mr. Ostrovskiy received the email from MTL on January 11, 2013. (Exhibit "1", page 5).
3. Mr. Ostrovskiy did not respond to the email referenced in #2 above.
4. Mr. Ostrovskiy received the email from MTL on May 10, 2013. (Volume 1, page 159).
5. Mr. Ostrovskiy did not respond to the email referenced in #4 above. (Volume 1, page 153, ¶11.)
6. Mr. Ostrovskiy's email address referenced in #1 above was disabled at the time MTL sent the email on May 9, 2013. (Exhibit "1", page 1).
7. Mr. Ostrovskiy did not notify any MTL personnel of any change in his contact information, and Mr. Ostrovskiy did not notify any MTL personnel that any of his email addresses would be disabled.
8. Mr. Ostrovskiy's company, IAM & AL Group Inc., became inactive on August 19, 2015, and Mr. Ostrovskiy's company, MAVL Capital, Inc., was dissolved on June 29, 2016.

9. Mr. Ostrovskiy never notified MTL or any of its personnel of the dissolution of any of his companies.
10. Mr. Ostrovskiy did not pay to MTL for any services with respect to the subject Mercedes.
(Docket Entry #60, page 4).
11. Mr. Ostrovskiy did not pay to MTL for any services with respect to the subject Porsche.
(Docket Entry #60, page 4).
12. Complainants have not had any discussions with MTL with respect to the subject Porsche.
13. Complainants have a history of not paying for services rendered by MTL.
14. Mr. Ostrovskiy did not produce any evidence concerning any repairs made or contemplated with respect to any of the subject vehicles. Complainants' own Statement of Proposed Findings of Fact, ¶29.
15. Complainants failed to pay for a shipment of chairs for vehicles that were loaded and sent to Bremerhaven, Germany. Docket Entry #60 and accompanying exhibits.
16. Complainants failed to pay for any services rendered by MTL with respect to the 2012 Volkswagen Jetta. *Id* and accompanying exhibits.
17. Complainants failed to pay for any services rendered by MTL with respect to the Bobcats motorcycles. *Id* and accompanying exhibits. Additionally, Mr. Ostrovskiy received money for the sale of a Bobcat motorcycle, worth \$12,900, from Roman Sobolev. Mr. Ostrovskiy, when he could not deliver the motorcycle to Mr. Solbolev, failed to refund the money to Mr. Sobolev. Mr. Sobolev obtained a Default Final Judgment against Mr. Ostrovskiy. *Id.* at 38.

18. Complainants failed to pay for any services rendered by MTL with respect to the 2014 Volvo. *Id* and accompanying exhibits.
19. Mr. Safonov from MEAA never produced any documents that would support his contention that he paid for repairs of the subject Mercedes. (See MTL's Response to Proposed Finding of Fact #57.
20. Mr. Ostrovskiy, in or around November of 2012, appeared at MTL's office. Exhibit "3."
21. When Mr. Ostrovskiy appeared in MTL's office in or around November of 2012, he had not satisfied his financial obligation to Atlantic Cargo Logistics. *Id*.
22. When Mr. Ostrovskiy appeared in MTL's office in or around November of 2012, he had received all documents/receipts/reports with respect to the subject vehicles.

Dated: April 20, 2021

Garry Pogil

Garry Pogil (Attorney for Marine Transport Logistics, Inc.)